

COMMONWEALTH OF MASSACHUSETTS

SUFFOLK, ss.

SUFFOLK SUPERIOR COURT

Majida Ortiz and Urszula Masny-Latos, on
Behalf of Themselves and All Persons
Similarly Situated,

Plaintiffs,

v.

EVERSOURCE ENERGY, a Massachusetts
voluntary association,

Defendant.

Civil Action No.

24-1455 H

JOHN E. POWERS III
ACTING CLERK MAGISTRATE

2024 MAY 31 P 1:48

SUFFOLK SUPERIOR COURT
CIVIL CLERK'S OFFICE

**CLASS ACTION COMPLAINT AND
DEMAND FOR TRIAL BY JURY**

Named Plaintiffs Majida Ortiz and Urszula Masny-Latos, on behalf of themselves and all other persons similarly situated in Massachusetts (the "Class" and/or "Plaintiffs"), by and through their counsel, allege the following facts and claims upon personal knowledge as to matters relating to themselves, and, upon information and belief, as to all other matters based upon the investigation of counsel as follows:

INTRODUCTION

1. Plaintiffs bring this class action against Eversource Energy ("Defendant") for its unfair and false, deceptive and misleading business practices in marketing, promoting and selling natural gas and related natural gas services to residential consumers as, inter alia, "clean" and "safe" for consumers and for the environment in order to retain them and/or sell and/or gain them as new customers (the "Class") in violation of Massachusetts General

Laws Chapter 93A ("Chapter 93A") and M.G.L. c. 266, § 91, and common law for unjust enrichment. A "Gas Stove Subclass" thereof comprised of Class members with gas stoves in their residence, who are thus exposed to toxic gases in their homes, including but not limited to when cooking, is seeking separate relief for the False Health-Safety claims described further below. (Plaintiffs are not seeking any determinations, recovery or damages with regards any personal health injuries that might or could be alleged in this demand or a subsequent lawsuit. Moreover, commercial and industrial customers are not part of the defined Class or Subclass.)

2. Plaintiffs Ortiz and Masny-Latos sent a detailed 32-page demand letter dated October 31, 2023 to Defendant pursuant to Chapter 93A, § 9 to demand that Eversource immediately cease the false and misleading advertising, marketing and promotion practices described herein, commit to never making such false statements in the future, issue corrective information and disclosures to the members of the Class and Subclass as to the potential health-safety risks of natural gas to consumers and their children from gas stoves, and harm to the environment principally due to the massive leaks of methane into the atmosphere (methane accelerates global warming at a rate that renders its climate impact worse perhaps than even coal), and pay them and the Class their reasonable damages. Plaintiffs attach their demand letter hereto ("Demand") as Exhibit A and incorporate the factual allegations contained therein in this Complaint by reference.

3. Defendant timely responded to the Demand on December 7, 2023 ("Response"), attached hereto as Exhibit B. On April 18, 2024, Plaintiffs sent a three-page letter to supplement their Demand (the "Supplemental Demand" attached hereto as Exhibit C) alleging further that "Eversource regularly sends its misleading and deceptive marketing and promotional information directly to Plaintiffs and all its residential customers on a frequent basis." It also replaced

Plaintiffs' prior demand for relief. On May 17, 2024, Defendant timely sent a four-page supplemental letter ("Supplemental Response") attached hereto as Exhibit D.

4. Defendant's Response (including the Supplemental Response, which repeats its defenses and, therefore, is not referenced separately hereinafter) is grossly deficient: it quibbles with the facts while ignoring Plaintiffs' core factual and legal contentions, and totally ignores its affirmative burden as to its advertising claims while nonetheless denying any liability. (It also failed to make a reasonable settlement offer.) Eversource's failure to provide any scientific substantiation for its challenged health-safety ("non-toxic") claims or for its broader (false) environmental marketing claims, is fatal to its defense. In fact, it cited only two studies and contends (falsely) that these undermine the "research practices" of the myriad of studies comprising the field of research on health risks from gas stoves. However, it did not cite either study as substantiation for its health-safety claims regarding gas stoves (nor do they so qualify since they do not purport to establish that gas stoves are safe). Defendant cites no studies, and thus makes no attempt, to substantiate its other broad pro-environment claims.

5. M.G.L. Chapter 93A, 2(b) bars false and misleading advertising and states that courts are "guided by the interpretations given by the U.S. Federal Trade Commission" ("FTC") which in turn expressly requires that "[m]arketers must ensure that all reasonable interpretations of their [environmental] claims are truthful, not misleading, and supported by a reasonable basis before they make the claims." Furthermore, the claims must be supported by evidence "sufficient in quality and quantity based on standards generally accepted in the relevant scientific fields, when considered in light of the entire body of relevant and reliable scientific evidence, to substantiate that each of the marketing claims is true." *See* 16 C.F.R. 260.2. Because Eversource failed to meet its burden to substantiate its marketing claims, its Response (including its

Supplemental Response) provides no defense and the Court may award prevailing Plaintiffs up to treble damages and attorney's fees and expenses.

6. Plaintiffs are now seeking the relief specified in this Complaint from this Court, including injunctive relief and money damages in an amount to be determined at trial.

7. Any statute of limitations that would otherwise apply is tolled under the doctrine of fraudulent concealment given Defendant's long perpetuation of its falsehoods about the health safety and environmental benefits of its natural gas.

PARTIES

8. Plaintiff Majida Ortiz is an individual residing with her family in Hyde Park, Suffolk County, Massachusetts. She is and has been a residential gas customer of Eversource since 2017. Plaintiff Ortiz purchases natural gas from Eversource to heat her home and hot water, and for use in her stove and oven, and pays monthly. Plaintiff Ortiz routinely receives emails and other information from Eversource asserting, inter alia, that its gas is clean and safe, including for the environment and climate. She has never received accurate, scientifically supported marketing information from Eversource on these critical topics, nor any such materials renouncing Eversource's prior false claims. Plaintiff Ortiz is entitled to honest marketing and promotional information from the company selling her gas on an ongoing basis and thus to know that it is accurate. Had she known the truth about the health and environmental risks of Eversource's natural gas, then she would have purchased less of the gas in the amount of at least \$1 monthly to reduce those risks. Moreover, she was and is entitled to receive the product advertised by Eversource that she bought – a product that is clean, safe and good for the environment, and for her and her family. The measure and amount of her damages is to be determined at trial.

9. Plaintiff Urszula Masny-Latos is an individual residing in Cambridge, Middlesex County, Massachusetts. She is and has been a residential gas customer of Eversource (including predecessors it acquired) since 2000. Plaintiff Masny-Latos purchases natural gas from Eversource to heat her home and hot water, and for use in her stove, oven and clothes dryer. Plaintiff Masny-Latos routinely receives information from Eversource along with her monthly bill asserting, inter alia, that its gas is clean and safe, including for the environment and climate. She has never received accurate, scientifically supported marketing information from Eversource on these critical topics, nor any such information renouncing Eversource's prior false claims. Plaintiff Masny-Latos is entitled to honest information from the company selling her gas on an ongoing basis and thus to know that it is accurate. Had she known the truth about the health and environmental risks of Eversource's natural gas, then she would have, inter alia, purchased less of the gas in the amount of at least \$1 monthly to reduce those risks. Moreover, she was and is entitled to receive the product advertised by Eversource that she bought — a product that is clean, safe and good for the environment, and for her and others. The measure and amount of her damages is to be determined at trial.

10. Defendant Eversource Energy is a Massachusetts voluntary association organized under the laws of the Commonwealth. Eversource is a publicly traded, Fortune 500 energy company headquartered in Boston, Massachusetts and Hartford, Connecticut, with several regulated subsidiaries offering retail electricity, natural gas service and water service to approximately 4 million customers in Connecticut, Massachusetts and New Hampshire. It has approximately 790,000 residential natural gas customers with, upon information and belief, over 250,000 in Massachusetts. These include the customers of Columbia Gas, which Eversource acquired in 2020, assuming all liabilities thereof.

JURISDICTION AND VENUE

11. The Superior Court has subject matter jurisdiction of this civil action pursuant to M.G.L. c. 212, § 4.

12. Personal jurisdiction and venue are proper in Suffolk County because Defendant has transacted business here and a substantial part of the events or omissions giving rise to the claims in this lawsuit occurred here.

BACKGROUND

13. Eversource has long been engaged in the marketing of its natural gas as a beneficial product, including to retain current customers, sell more gas and/or to convince residential customers who use other fuel sources to convert their homes and appliances to natural gas. Eversource routinely communicates directly with and markets to its residential customers through newsletters and other information inserted in their monthly bills, or that are sent to them via email, and/or that appear on its website to which its other information is linked, and/or via ads on Facebook and other social media, and via traditional media. This marketing information is made in connection with the sale of its gas to the Named Plaintiffs and the putative Class who purchase the gas continuously and are billed monthly. *See, e.g.*, 16 C.F.R. § 260.1(c) (“These [FTC] guides apply to claims about the environmental attributes of a product, packaging or service **in connection with** the marketing, offering for sale, or sale of such item or service to individuals.” (Emphasis added.)

14. Plaintiff Ortiz, for example, regularly receives marketing emails from Eversource, including those that make false and deceptive environmental claims as discussed further below. Similarly, Plaintiff Masny-Latos receives such marketing information from Eversource in with her monthly gas bills. The cumulative message conveyed by Eversource in its advertising and

promotions is that its gas is clean and safe (non-toxic) and good for the climate, and that Eversource operates as a good steward of the environment.

15. Eversource's website is reflective of this:¹

Benefits of natural gas:

- It's versatile. In addition to heating your home and water, it also fuels **fireplaces, grills, outdoor lighting, pools and appliances.**

Eversource uses photographs and videos to convince consumers they should continue to rely upon, or switch to Eversource's gas and related services. The first webpage of the Connect to Gas link on the Eversource website as recently as April 1, 2024 featured a large photograph of a couple and a young boy in their kitchen, with a gas stove in the background. Recently, after April 1, 2024, Eversource removed the deceptive image from its website. This is an implicit admission of wrongdoing, as are its other recent changes described herein.²

EVERSOURCE

Q Search

📞 Help

👤 Sign Out

Account & Billing

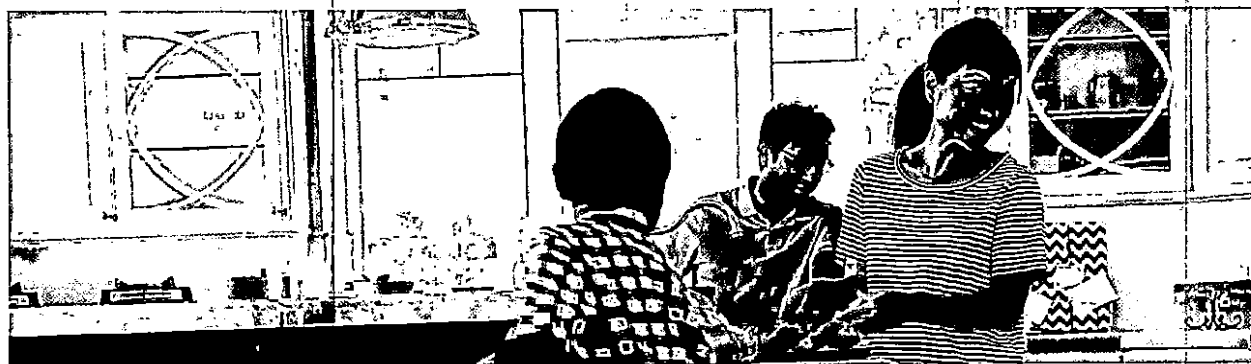
Outages & Storms

Services

Save Money & Energy

Safety

About



¹ See, e.g., <https://www.eversource.com/content/ct-c/residential/services/connect-to-gas/choose-natural-gas/why-switch>. (as of 4/1/24)

² See <https://www.eversource.com/content/residential/services/connect-to-gas> (visited May 29, 2024)

16. As recently as September 2022, the Eversource website utilized a similar photo of a family with two kids below links to “Why Switch?” and “Learn More” which was placed on a stylized picture of a lighted gas stovetop. This latter link then landed on an Eversource webpage that stated (as recently as September 2022) in pertinent part:

Why connect to natural gas?

Natural gas is convenient and efficient.

Natural gas is delivered every day to more than 79 million residential, commercial and industrial customers across the United States. See what our customers had to say when they connected to gas.

17. Testimonials of Eversource clients were also featured on Eversource’s website in three videos in which the clients repeated claims regarding the safety of Eversource’s natural gas in family residences, including specifically for children. The woman in one couple states on the first video: “I just feel like it’s a very safe way to heat your home. No worries.” The video then cuts immediately to another couple with the woman stating: “Safety is very important. We have a child here.” The male in this couple with a child states shortly thereafter: “We have our gas stoves that work for cooking and everything.” (Emphasis added.) Throughout the video the customers say things like: “It’s safe” and “It’s safe. Cleaner.” The following are screen shots taken from this video (with the subtitles for the audio).

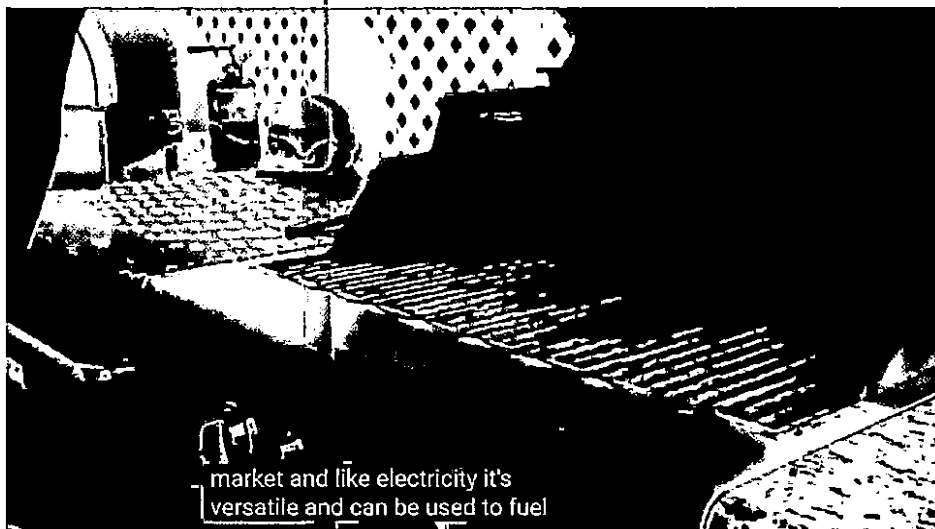




18. The most shocking Eversource video, appearing under the banner headline “Benefits of Natural Gas” shows a family with two small children and includes the following narration by Eversource:

And, like electricity it's [natural gas is] versatile and can be used to fuel many appliances and other items. [cuts to image of family with small children] Natural gas is clean, safe and good for the environment and your family. In fact, it has the smallest carbon footprint of any form of fossil fuel-based generation. (Emphasis added.)

Below are relevant screen shots from this Eversource video (with subtitles for the audio):





I. EVERSOURCE'S FALSE AND DECEPTIVE HEALTH-SAFETY CLAIMS

19. Eversource's claims that natural gas is "clean, safe and good for ... your family" are false. These also constitute impermissible "non-toxic" claims given that Eversource's natural gas emits harmful chemicals into the homes and buildings of its residential gas customers creating potentially dangerous levels of indoor air pollution.

20. Natural gas is comprised predominantly of methane, but also contains other harmful chemicals as found in a 2022 study of Boston-area natural gas by D.R. Michanowicz, et al, in Environmental Science Technology. (<https://pubs.acs.org/doi/10.1021/acs.est.1c08298>) And, as discussed further below, when natural gas is burned, the combustion process creates additional dangerous pollutants, including carbon monoxide, nitrogen dioxide and formaldehyde. (<https://pubs.acs.org/doi/10.1021/acs.est.1c04707>)

21. The 2022 study by D.R. Michanowicz et al., referenced above analyzed the raw natural gas distributed to homes by utility companies (including Eversource) in metropolitan Boston. The investigators found that there were 296 unique Nonmethane Volatile Organic Compounds, of which 21 (approximately 7%) were designated as hazardous air pollutants (HAPs), including the carcinogen benzene. According to the study, “given benzene’s genotoxicity, no safe level of benzene exposure can be recommended, which is often reflected in its relatively low reference exposure levels.” Although the detected benzene was below Massachusetts limits, the study acknowledges there is no known safe level of benzene, particularly for children. This is critical given that gas leaks may occur within homes even when gas appliances are off, according to a 2022 Stanford University study by E. Lebel, et al. (<https://pubs.acs.org/doi/10.1021/acs.est.1c04707>) Very concerning is the added fact that the gas may often be undetectable to inhabitants due to the ineffectiveness of added safety odorants, particularly in winter (“when lower air exchange rates are generally more prevalent”), as found in the above Boston study by D.R. Michanowicz. Another more recent study by both E. Lebel and D.R. Michanowicz, and others, conducted in California in 2022 “found that [natural gas] leakage from stoves and ovens while not in use can result in indoor benzene concentrations that can exceed the California Office of Environmental Health Hazard Assessment 8-h Reference Exposure Level of 0.94 ppbv-benzene concentrations comparable to environmental tobacco smoke.” (<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC9671046/>) (Emphasis added.)

22. Numerous other studies have examined the danger for human health resulting from natural gas combustion. A 2015 study, for example, by N.A. Mullen, et al., found that homes without gas stoves had average carbon monoxide (“CO”) levels between 0.5 and 5 parts per million (“ppm”), while homes even with properly adjusted and ventilated stoves had levels

between 5 and 15 ppm, and homes without adequate ventilation featured CO levels of 30 ppm or higher, indicating such residents may experience CO levels that can put vulnerable populations at risk. (<https://bit.ly/3xdubed>) According to the EPA, health effects associated with CO include, at low concentrations, fatigue in healthy people and chest pain in people with heart disease, and at higher concentrations, impaired vision and coordination, headaches, dizziness, confusion, nausea. (<https://www.epa.gov/indoor-air-quality-iaq/carbon-monoxides-impact-indoor-air-quality#Levels>)

23. But the most significant pollutant produced by gas stove use may be nitrogen dioxide (“NO₂”). “[U]nvented combustion appliances, e.g. gas stoves” is first on the EPA’s list of primary sources of indoor nitrogen dioxide. (<https://bit.ly/36XUNpa>) The Rocky Mountain Institute (RMI) found in a 2020 study that “[n]itrogen dioxide levels are consistently higher in homes that cook with gas rather than electric stoves.” (<https://bit.ly/3O1fyB0>) Indeed, citing the EPA, homes with gas stoves were found to have “approximately 50 percent to over 400 percent higher average [nitrogen dioxide] concentrations than homes with electric stoves.” *Id.*

24. According to a 2013 three-arm-randomized-trial Baltimore study in *Indoor Air*, by L.M. Paulin, et al., the replacement of unvented gas stoves with electric stoves was found to be the most effective method of reducing NO₂ levels in the kitchens and bedrooms of homes (by 51% and 42% respectively at 3 months), followed considerably behind by placement of air purifiers with HEPA and carbon filters (by 20% in kitchen at 3 months), while installing overhead ventilation for gas stoves had a wide range of efficacy, including in some cases none. (<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC4909253/>)

25. A 2014 study by J.M. Logue, et al., at the Lawrence Berkeley National Laboratory of indoor air quality in Southern California found that 62 percent of homes with gas

stoves and not using venting range hoods routinely had short-term and long-term nitrogen dioxide levels significantly exceeding the EPA's ambient air quality standards.

(<https://bit.ly/3DRUPea>) The recent 2022 Stanford University study found that “families who don't use their range hoods or who have poor ventilation can surpass the 1-hour national outdoor standard of NO₂ (100 ppb) within a few minutes of stove usage, particularly in smaller kitchens.” Other modeling-based approaches suggest residents are exposed to such NO₂ levels 62% of the time while using their gas stove but not using their range hoods, and 28–36% of the time when using range hoods. See Demand, fn 17.

26. As a general matter, NO₂ has been found to exacerbate or cause respiratory illness, and is suggestive of a causal relationship with cardiovascular and other illnesses, including dementia, in older adults. See Demand, fns 18-20.

27. Significantly, the EPA has long recognized that NO₂ is associated with respiratory illnesses like asthma. In 2016, the EPA concluded that short-term NO₂ exposure is “causal” of asthma attacks, changing the designation from “likely causal.” The EPA changed long-term NO₂ exposure to “likely causal” of the development of asthma. See Demand, fn 20.

28. Studies have long shown overwhelmingly that respiratory ailments are significantly higher in homes that cook with gas. A 2013 meta-analysis by W. Lin et. al, of 41 studies “suggests that children living in a home with gas cooking have a 42% increased risk of having current asthma, a 24% increased risk of lifetime asthma and an overall 32% increased risk of having current and lifetime asthma; per 15 ppb [parts per billion] increase in indoor [nitrous dioxide] NO₂ level, children have a 15% increased risk of having current wheeze.”

(<https://citeseerx.ist.psu.edu/viewdoc/download?doi=10.1.1.862.6774&rep=rep1&type=pdf>)

According to a 2013 study by K. Belanger et al, in *Epidemiology*, every 5 ppb increase in

NO₂ exposure above a threshold of 6 ppb was associated with a dose-dependent increase in risk of higher asthma severity score, wheeze, night symptoms and rescue medication use in asthmatic children 5 to 10 years old. (<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC3686297/>)

29. In 2017, L.M. Paulin and a team of researchers in Baltimore measured 24-hour NO₂ levels and found the higher the NO₂ levels, the more children needed asthma medicine, finding that for every hour of gas cooking, NO₂ levels increased by 18 ppb. (<https://www.ncbi.nlm.nih.gov/pmc/articles/pmid/28797886/>)

30. Other human toxins released by natural gas combustion that leach into the home, including formaldehyde, also have adverse health consequences. *See Demand*, fn 21. (Plaintiffs hereby incorporate in this Complaint all the studies cited in the Demand at pp. 6-12.)

31. Eversource shamelessly promotes the broad use of gas without revealing the potential risks and hazards: “In addition to heating your home and water, it also fuels fireplaces, grills, outdoor lighting, pools and appliances.” *See supra.*, para 14. Eversource’s website imagery highlights small children, and its featured video testimonials from customers proclaim that, *e.g.*, “Safety is very important; we have a child here.... We have our gas stove that works for cooking and everything.” *See supra.*, para 16.

32. Eversource’s marketing of natural gas as “clean, safe and good for... your family” dangerously covers up the risks to human health, particularly for children, associated with gas stove use in homes. And Eversource’s false “clean” and “safe” marketing claims over many years undermine ventilation usage, thereby exacerbating the indoor air pollution. Stove fans are used infrequently; only 25-40% of the time even when available as reaffirmed by the 2022 Stanford University study. But Eversource persistently claimed and falsely conveyed publicly that cooking with gas was fine, that it is clean and safe and even de-emphasized ventilation. In

fact, its website suggested ventilation is unnecessary (as recently as September 2022). On the web page captioned Natural Gas Stoves & Ranges, amongst the marketing information under “common features,” it stated in pertinent part: “Downdraft and self-venting cook tops remove steam, smoke and cooking odors without the need for overhead venting.” Demand, fn 24. (Emphasis added.) Conspicuously, it makes no mention of the existence of the potentially harmful constituent parts of its gas, nor anything about venting them externally. Yet it prominently displays a photograph of a mother and young child, above the text, to convey that cooking with gas is safe for families with children.



NATURAL GAS STOVES & RANGES

Cooking with natural gas is the smart choice.

Cooking with natural gas is three times more efficient than cooking with electricity, and it offers value and convenience. It has become the preferred choice for cooking professionals.

A natural gas stove or range offers flexibility and efficiency and you can control the temperature instantly.

Common features:

- Available in many configurations and styles to match any decor. Choose built-in or freestanding models with two or four burners and many options.
- Downdraft and self-venting cook tops remove steam, smoke and cooking odors without the need for overhead venting.
- Easy-to-control burners have instant on/off controls for precision cooking. Sealed burners make cleaning easier.
- Self-clean or continuous-clean models make clean-up easy.
- New ovens are well insulated, keeping more heat in the oven and less in your kitchen.
- Convection ovens available that use 40 percent less energy than conventional ovens and produce superior baking results.

33. Because many overhead fans do not vent outside, and given that the technical reference to “downdraft and self-venting cook tops” was not explained, this implies that *external* ventilation is unnecessary. Nowhere does it state that external ventilation may reduce human exposure to the noxious elements of natural gas, including from the byproducts of cooking with

gas. By failing to disclose the toxicity and risks, Eversource's "without the need for overhead venting" statement furthers the false marketing that cooking with gas is "clean" and "safe."

34. But this is standard operating procedure for Eversource. In an Eversource video posted to its Facebook page, an employee (in Eversource uniform) purports to demonstrate a gas stove he claims is burning "clean." Of course, it is anything but clean as the overwhelming scientific evidence establishes. Moreover, the employee conducts his demonstration on a gas stove with no ventilation, thus reinforcing Eversource's false narrative that its natural gas is "clean" and "safe."



This above image is a screen shot from the Eversource video showing the employee and gas stove on its Facebook page. Demand, p. 12. Eversource's Facebook ads also featured a photo from this demonstration without disclosing the health risks from the gas nor suggesting ventilation was even necessary. See Exhibit E (June 17, 2019). Similarly, Eversource ran Facebook ads featuring a close-up of a lit stove gas burner with the caption:

Do you have natural gas appliances in your home? We're always working to keep you safe, so we have some helpful tips on how to properly use your appliances.
<http://spr.ly6186ECC6M>

Exhibit E (September 13, 2019). Contrary to the stated concern about customer safety, however, the link failed to warn of any potential health risks from cooking with gas or of a need to vent

fumes externally. Similarly, in a Valentine Day Facebook ad from 2020 and 2021, Eversource conveys that a “clear blue flame” is safe, and needs a tune up if it burns yellow, but provides no health warnings about the gas while nonetheless showing two girls at the gas stove. See Exhibit E (February 12, 2021, and February 14, 2020). In other words, Eversource sells its product’s “safety” by offering half-measures, while covering up the gas’s potential health risks, thereby deceiving customers that they are protecting themselves.

35. Moreover, Eversource never discloses on its website or elsewhere that electric stoves and ovens generally outperform gas stoves as, for example, Consumer Reports recently found. Demand, fn 27. Nor does it disclose that gas stoves were the least efficient when compared to electric and induction stoves.

(<https://www.aceee.org/files/proceedings/2014/data/papers/9-702.pdf>) To the contrary, Eversource falsely claimed that: “Cooking with natural gas is the smart choice. Cooking with natural gas is three times more efficient than cooking with electricity....” See top line of block text quoted, *supra.*, para. 31 under “Natural Gas Stoves & Ranges.” These additional false and deceptive marketing claims are made in service of Eversource’s effort to sell more natural gas.

36. Eversource’s marketing claims identified above violate Chapter 93A, § 2(a), including because they violate the regulations promulgated pursuant to Chapter 93A, § 2(c), *inter alia*, 940 C.M.R. 3.05(1) and (2) as to the safety, condition and benefit derived from the use of its natural gas, and 940 C.M.R. 6.03(2)-(4) as to the false and deceptive advertisements, the false inferences created by Eversource, and its omission of material facts as described above.

Although Eversource’s Response cites an American Gas Association funded study by W. Li, et al. that questioned the bona fides of some of the dozens of studies that found health risks from

gas stoves, but that flawed critique fails to overcome the overwhelming evidence of risk shown in the underlying studies.

37. Moreover, Eversource's Response fails to meet its burden of establishing that its non-toxic claims – that natural gas is clean, or safe, or good for families – is supported by the requisite evidence. Under Chapter 93A, § 2(b) courts are “guided by the interpretations given by the [FTC]” which precludes deceptive non-toxic claims made “directly or by implication...” (16 C.F.R. § 260.10 (a)). According to the FTC: “A non-toxic claim likely conveys that a product, package or service is non-toxic both for humans and for the environment generally. Therefore, marketers making non-toxic claims should have competent and reliable scientific evidence that the product, package, or service is non-toxic for humans and for the environment or should clearly and prominently qualify their claims to avoid deception.” (16 C.F.R. § 260.10 (b)) Eversource's marketing also violates 16 C.F.R. § 260.2 (“A representation, omission, or practice is deceptive if it is likely to mislead consumers acting reasonably under the circumstances and is material to consumers' decisions.”).

38. Because Eversource has made non-toxic marketing claims that natural gas is clean, safe and good for families, including for children, without qualification and without competent and reliable scientific evidence to substantiate its claims, it is in violation of FTC guidance and therefore Chapter 93A, § 2(b).

EVERSOURCE'S DECEPTIVE MARKETING PRACTICES CONCERNING GAS STOVES BELONG TO A LONG-TERM STRATEGY OF MISINFORMATION AND MANIPULATION

39. The gas stove has long played an outsized role in Eversource's and other gas companies' strategies for expansion. As a portion of sales, gas stoves represent under 3% of residential gas usage, compared to 69% for heat and 26% for hot water. Yet, for 70 years, the gas

industry focused much of its marketing on stoves reasoning that consumers have more of a connection to them than to their furnace or water heater. Because all gas comes through the same pipe, once a consumer is incentivized to invest in a gas hookup for a stove, gas heating and hot water – the industry’s real income generators – likely follow. And that is why Eversource, and the gas industry spent decades, and millions of dollars, convincing consumers that gas stoves are superior for cooking. *See Demand*, pp. 14-16.

40. As evidenced by the false claims on Eversource’s website, stove-focused marketing strategies have remained central to it. Gas stoves are also being deployed to counter pushes for building electrification to avert the climate crisis. As reported in *The New York Times*, an American Gas Association (“AGA”) lobbyist warned utility executives in a March 2020 meeting that the campaign against natural gas was gaining momentum and that the industry needed “to really change the narrative.” The lobbyists suggested the frame *protecting consumer choice* in order “to really get ahead of the localities, the big cities and counties and say we are allowing our customers the right to have, to be hooked up, to any kind of energy they would like.” The gas industry thus successfully wielded gas stove freedom-of-choice in its campaigns to block climate action around the country, resulting in 20 states passing preemption laws prohibiting cities from restricting natural gas in new construction and otherwise.

41. In an earlier advocacy training document in 2018, the AGA stressed a key point. “It all boils down to how the natural gas industry chooses to tell its story.” The industry has centered its story on gas stoves, while burying and denying – as Eversource does in its Response – the harsh truth about the risks from noxious gases: those that leak, and those that are byproducts of gas combustion when cooking, and that are thus emitted into people’s living quarters with potential known adverse health consequences.

42. Although Eversource apparently left the AGA in early 2022, it did so without correcting nor distancing itself from the AGA's natural gas marketing propaganda and it still emphasizes gas stove cooking around children in its marketing. Eversource's disregard for the wellbeing of consumers, manifest through its false and deceptive marketing of natural gas, and covering up its risks, is actionable and must be enjoined.

II. EVERSOURCE'S FALSE AND DECEPTIVE ENVIRONMENTAL CLIMATE CLAIMS AND GREENWASHING SCHEME

METHANE IS A CLIMATE KILLER

43. Methane is approximately 83 times more potent a greenhouse gas than CO₂ over a twenty-year period, and at least 27 to 30 times more warming over 100 years according to the EPA. Other studies put the methane warming multiplier even higher. (<https://bit.ly/3Kobys1>) Because of its undeniable danger, Massachusetts, the United States, the European Union and other nations have prioritized methane reduction to combat the climate crisis through the Paris Accords and in other international agreements. The UN Environment Programme called for a 45 percent decline in methane emissions by 2030 and the White House committed to a 30 percent reduction in methane emissions from 2020 levels by 2030.

44. The U.S. State Department and the Office of the President in November 2021 emphasized methane reduction in context:

The most recent report from the Intergovernmental Panel on Climate Change (IPCC) vividly illustrates, with robust scientific confidence, the need to limit warming to 1.5°C, or as close as possible to that crucial benchmark, to avoid... severe climate impacts.... To meet these global milestones, we must retool the global energy economy, transform agricultural systems, halt and reverse deforestation, and decisively address non-carbon dioxide emissions — **focusing particular attention on methane (CH₄), which accounts for roughly 0.5°C of the current observed net warming of 1.0°C.**

Demand, p. 15 (emphasis added).

45. In Massachusetts, strict GHG emissions limits were established, including by sector, with the “dominant building decarbonizing strategy [being] electrification.” (<https://www.mass.gov/doc/2025-and-2030-ghg-emissions-limit-letter-of-determination/download> at 4).

**EVERSOURCE IS AKIN TO A COAL COMPANY
CLOAKING ITS PRODUCT AS ENVIRONMENTALLY BENEFICIAL
AND ITSELF AS GREEN**

46. The natural gas that Eversource markets, distributes and sells to Plaintiffs Ortiz and Masny-Latos and the hundreds of thousands of other residential consumers in Massachusetts comprising the putative Class is not “clean” or “clean, safe and good for the environment” as Defendant claims.

47. The significant amount of fugitive methane that leaks into the atmosphere during every phase of the production, processing, transportation and consumption of Eversource’s gas is damaging to the environment. In fact, at the levels documented, its gas is as bad or worse than coal, the dirtiest of fuels, for the climate.

48. Eversource’s gas pipeline infrastructure in Massachusetts is one of the oldest in the nation and also one of the leakiest. Shockingly, fugitive methane emissions from just the gas infrastructure in metropolitan Boston, where the Named Plaintiffs reside, and which includes significant portions of Eversource’s service territory, were estimated recently in a study by Sargent, et al., at 2.5% [$\pm 0.5\%$] of the natural gas distributed (based on 8 years of data from 2012 – 2020). (<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC8612348/> at 17 of 22) This percentage, 2.5%, is six times higher than the most recent estimate of the Massachusetts Department of Environmental Protection. *Id.* at 15. Calculation of the total methane emissions from natural gas in metropolitan Boston soars to 4.7% when adding in the official estimated

emission rate of 2.2% for losses from production and transmission before the gas arrives in the city. Id. at 17. Even if only fugitive methane emissions estimated at 1% for the Appalachian Basin (which sources most of the gas in Massachusetts) were factored in, and without factoring in any transmission losses from wellhead to Boston, (<https://iopscience.iop.org/article/10.1088/1748-9326/abef33/pdf>) the aggregate leakage is still over 3.5% (+- 0.5%).

49. Eversource's methane fugitive emission rate of over 3.5% to 4.7% (+-0.5%) is highly material: above a 2.8% to 3.1% methane leakage rate it is estimated that natural gas adversely warms the climate more than even coal. As reported in *The New York Times*: "Based on more recent data from the Intergovernmental Panel on Climate Change, Dr. Howarth [professor of ecology and environmental biology at Cornell University] estimates that the threshold is closer to 2.8 or 2.9 percent." (<https://www.nytimes.com/2022/03/24/climate/methane-leaks-new-mexico.html>)

50. Thus, although natural gas is perhaps half as carbon intensive as coal at the point of combustion, factoring in fugitive methane emissions repudiates the claim it is "clean, safe and good for the environment."

51. Eversource is well aware of its fugitive methane problem: it cited Sargent's Boston methane leak study in filings with the MA Department of Public Utilities in March 2022; knows the difference between the amount of gas it bought and was supplied versus what it could account for and charge its own customers; and presumptively performs its own tests and analysis of leak rates to account for the substantial missing gas. Eversource is also engaged in a losing battle to repair its pipes with "new leaks appearing in the aging Boston pipeline system as fast as old ones are fixed" according to Sargent's study. As such, Eversource knows that its leak-prone

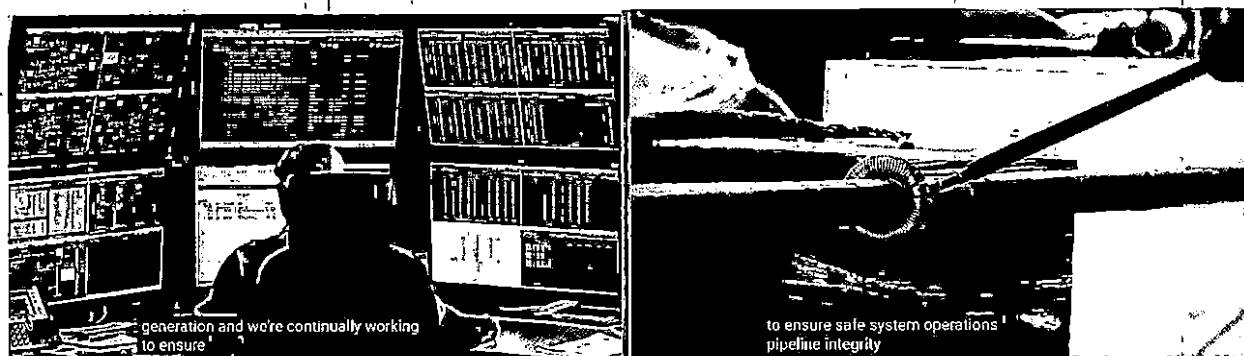
infrastructure is functionally beyond repair despite expensive (and habitually unsuccessful) efforts to fix leaks as a separate study by Edwards showed.

(<https://doi.org/10.1021/acs.est.0c07531>) (finding, inter alia, a 75% failure rate for 61 leaks that the utilities identified as “potential high emitters” for which on-site measurements were taken from 2019 to 2020). Moreover, Sargent’s leak study suggests that fixing pipes may not resolve the problem because higher fugitive emissions correlate with consumption, thus “a large fraction of emissions [may be] from other sources...directly linked to consumption, such as space heating and other appliances in residential, industrial, and commercial buildings...” Sargent at 16 of 22.

52. Eversource’s portrayal of natural gas as environmentally friendly and beneficial in its marketing materials – by ignoring and concealing the adverse global warming impact of its methane leaks on par with coal – renders its claims false and/or deceptive in violation of 16 C.F.R. § 260.2, § 260.3(c) (“An environmental marketing claim should not overstate, directly or by implication, an environmental attribute or benefit. Marketers should not state or imply environmental benefits if the benefits are negligible.”) and § 260.4(d) (“Even if a marketer explains, and has substantiation for, the product’s specific environmental attributes, this explanation will not adequately qualify a general environmental benefit claim if the advertisement otherwise implies deceptive claims.”). In the context of the ambitious state and national decarbonization targets set for 2030 to 2050, to be achieved through rapid electrification and expansion of renewable energy sources, Eversource’s false environmental claims are antagonistic and an impediment to reaching those goals, further rendering them deceptive under the above cited C.F.R.s and Chapter 93A, including 940 C.M.R. 3.05, and 6.03(2)-(4).

53. To add to its deceit, Eversource misleadingly conveys that its pipelines are intact, asserting: “And we’re continuously working to ensure safe system operations, pipeline integrity

and delivery of natural gas.” Referring to video referenced *supra.*, para. 17, with text depicted below. (Emphasis added.) The perpetual lack of pipeline integrity contradicts this claim. By falsely implying that its pipelines are intact, particularly when accompanied by its “clean, safe and good for the environment” assertion, violates § 260.3(c).



Eversource's Fracked Gas is Environmentally Destructive

54. Eversource's pro-environmental claims are further deceptive and misleading because its gas is predominantly fracked gas sourced from Marcellus shale in the Appalachian Basin (<https://iopscience.iop.org/article/10.1088/1748-9326/abef33/pdf> at 6). There are myriad serious adverse environmental impacts associated with fracked gas: contamination of ground and surface water, air pollution, noise and light pollution, radiation releases, ecosystem damage and earthquakes. (<https://www.nejm.org/doi/full/10.1056/NEJMp1913663> and <https://www.niehs.nih.gov/health/topics/agents/fracking>) Thus, Eversource's deceptive claim that its product is clean, safe and good for the environment is actionable on these additional grounds as violations of, e.g., 16 C.F.R. § 260.2, § 260.3(c), and § 260.4(d).

Eversource's False Environmental Claims for Gas Furnaces and Boilers

55. Eversource deceptively claimed on its website: “NATURAL GAS FURNACES & BOILERS: Natural gas furnaces and boilers offer a higher efficiency and better value

alternative to oil and electric heating systems.” (As recently as September, 2022; quoted in relevant part.) However, electric air heat pumps are much more efficient than even high-efficiency gas furnaces, use less fuel and emit 43-50% less overall CO2 emissions. Demand, fn 61. What’s more, heat pumps substantially outperform gas furnaces both when upstream methane leakage is considered, and also on a purely CO2 emissions basis in projections through 2036. Demand, fn 60.

56. Eversource has never corrected nor repudiated its materially false and misleading “higher efficiency... to electric heating systems” claim made in violation of 16 CFR § 260.2, which claim also overstates the supposed benefit of gas furnaces for the environment in violation of 16 CFR §§ 260.3(c) and (d). Also, Eversource makes false efficiency (environmental) claims in promoting gas stoves in violation of § 260.3(c). *See supra.*, para. 31 (“Cooking with natural gas is the smart choice. Cooking with natural gas is three times more efficient than cooking with electricity....”).

Eversource’s False “Non-Toxic” Environmental Claims

57. Eversource also makes prohibited non-toxic claims in asserting that natural gas is “clean” and “clean, safe and good for the environment” and does so without any qualification as to the dangers/toxicity of natural gas for the environment. Therefore, the claims are deceptive and in violation of § 16 C.F.R. § 260.10 (a) (“It is deceptive to misrepresent, directly or by implication, that a product... or service is non-toxic. Non-toxic claims should be clearly and prominently qualified to the extent necessary to avoid deception”) and § 260.10 (b) (“A non-toxic claim likely conveys that a product... or service is non-toxic both for humans and for the environment generally. Therefore, marketers making non-toxic claims should have competent and reliable scientific evidence that the product... or service is non-toxic for humans and for the

environment or should clearly and prominently qualify their claims to avoid deception.”)

(Emphasis added.)

No Qualification of Environmental Claims

58. Eversource cannot claim that it qualified any of its audacious environmental marketing claims. After its claims that “natural gas is clean, safe and good for the environment and your family” Eversource stated: “In fact, it has the smallest carbon footprint of any form of fossil fuel-based generation.” But this latter claim is false and deceptive because it does not qualify the statement of broad environmental benefit, nor is it “clean” or “good” for the environment as discussed above. 16 C.F.R. § 260.2. Its “carbon footprint” is not superior to oil or coal. *Id.* As such, Eversource grossly “overstates” any environmental benefits of gas by ignoring the substantial adverse climate impact from its leaked methane. *Id.*, and § 260.3(c) (environmental marketing claim should not overstate environmental attribute/benefit, or state or imply environmental benefits if negligible); § 260.3(d) (“Comparative environmental marketing claims should be clear to avoid consumer confusion about the comparison. Marketers should have substantiation for the comparison.”), and § 260.4(d) (“Even if a marketer explains, and has substantiation for, the product’s specific environmental attributes, this explanation will not adequately qualify a general environmental benefit claim if the advertisement otherwise implies deceptive claims.”).

59. All of Eversource’s above referenced marketing claims concerning the environment also violate Chapter 93A, § 2(a), by violating the Attorney General’s regulations issued pursuant to § 2(c), *inter alia*, 940 C.M.R. 3.05(1) and (2) as to the safety, condition and the benefit derived from the use of its natural gas for the environment, and 940 C.M.R. 6.03(2)-

(4) as to the false and deceptive advertisements and false inferences created by Eversource as described above.

EVERSOURCE'S BROADER GREENWASHING SCHEME

60. Eversource actively disseminates disinformation in marketing information to falsely present its product (gas) and service as sustainable and environmentally responsible and beneficial to current and potential customers. This is classic greenwashing: essentially the process of conveying a false impression or providing misleading information about how a company's products are more environmentally sound than they are, including using unsubstantiated claims to deceive consumers into believing its products are environmentally friendly. Eversource is engaged in greenwashing through marketing, including newsletters and other information inserted in monthly bills and/or sent via email, on its website which is linked to from its other materials, and on social media such as Facebook and twitter, in connection with the sale of its gas to Ms. Ortiz, Ms. Masny-Latos and the putative Class who purchase the gas continuously, and are billed monthly. 16 C.F.R. § 260.1(c) ("These guides apply to claims about the environmental attributes of a product, packaging or service **in connection with the** marketing, offering for sale, or sale of such item or service to individuals." (Emphasis added.)

61. Eversource routinely promotes its claimed pro-environmental credentials directly to its customers with inserts in their bills and/or attachments to emails, and information links to its website, including its various annual Sustainability Reports. For example, one such promotional document, titled "The Eversource Customer Update, Sustainability Issue (June 2022)," was distributed directly to its customers (and contained a link to its website and its Sustainability Report for 2020). The document stated that it is a "newsletter designed to inform you of the steps Eversource is taking to be a catalyst for clean energy." Most saliently, it it

Eversource asserts that it is currently: “**Protecting natural resources** while holding ourselves **accountable** for the impact our business may have on the **environment**; and “**Our commitment to sustainability** is an important part of our vision for how we conduct our business today and serve our customers in the future.” (Emphasis added.) These are not forward-looking statements, as Eversource contends in its Response, but claims as to current conduct.

62. In addition, Eversource states that it is “committing to having our operations be carbon neutral by 2030.” Id. It directs customers’ attention to its website, stating: “Discover what we are doing to power New England’s clean energy at [Eversource.com/sustainability](https://eversource.com/sustainability).” Id. And while this commitment is framed as looking to 2030, Eversource’s statement is actionable greenwashing now because it deceptively uses the terms “operations” and “carbon neutral” to convey and imply that it has committed to far more than the fine print shows it actually intends,

as discussed below.

NATURAL GAS
customer

update)))

EVERSOURCE
June 2022



WELCOME to the **Sustainability** issue of Customer Update, a newsletter designed to inform you of the steps Eversource is taking to be a catalyst for clean energy.

Delivering a Sustainable Future



New England's energy future needs to be sustainable, equitable and inclusive. Sustainability at Eversource includes our vision to be a catalyst for clean energy, a pacesetter in carbon reduction, and a leader in ensuring racial equity and social justice among our employees, customers and suppliers.

To meet these goals, we're:

- ✓ **Building the Infrastructure** our region needs to deliver clean energy to homes and businesses, and committing to having our operations be carbon neutral by 2030.
- ✓ **Working with community** and government leaders to ensure clean energy solutions are accessible to everyone.
- ✓ **Committed to the fair treatment** and meaningful engagement of all people, regardless of race, color, national origin, spoken language or income.
- ✓ **Protecting natural resources** while holding ourselves accountable for the impact our business may have on the environment.

Our investments in renewable energy sources, like wind and solar, play an important role in a clean energy future.

Join us on the journey
Our commitment to sustainability is an important component of our vision for how we conduct our business today and serve our customers in the future. Discover what we're doing to power New England's clean energy at [Eversource.com/sustainability](https://www.eversource.com/sustainability).

Offshore Wind to Power 1 Million Homes



We've secured at least 4,000 megawatts of offshore wind development opportunity in the Northeast with our partner, Ørsted, the world's leading developer of offshore wind. Currently, we have more than 1,700 megawatts under contract.

- **How much is that?** Our existing projects will provide enough clean energy to power more than 1 million homes.
- **And we can double that** amount to 2 million homes within our current lease area.
- **We're proud to have started** construction on our first offshore wind project, South Fork Wind.
- **In addition to our offshore** wind projects, we are committed to providing our customers with access to more clean, renewable energy as other New England offshore wind projects are built.

3/05-4/1/24

63. These greenwashing claims by Eversource continue to the present. After July 2022, its website as cited in its Sustainability “newsletter” sent to consumers actually linked to a newer Sustainability Report (2021), which continued to convey a misleading image of environmental stewardship and environmental responsibility. Eversource’s website page accompanying the Report stated, in relevant part: **“Sustainability is embedded in how we**

conduct our business every day and how we plan for future generations.” And “**We focus on integrity, safety, reliability, and operating in a socially and environmentally responsible manner.**” (Emphasis added.) It states further that “**This approach helps us** earn the trust of our customers, attract talented employees and **shoulder our responsibility to protect our planet and its people.**”

64. Although the above text was removed sometime in later 2023, Eversource’s website continues to make such claims:

Environment

We value our natural resources and are committed to protecting them while holding ourselves accountable for the impact our business may have on the environment. We're building the infrastructure our region needs to deliver clean energy to homes and businesses, and we're committed to having carbon-neutral operations by 2030.

(<https://www.eversource.com/content/residential/about/sustainability>) (last visited 5/29/24)

(Emphasis added.)

Eversource’s Sustainability Claims are Actionable Greenwashing

65. Eversource’s sustainability marketing materials suggest and create the impression that its operations and gas (product) have a positive or no adverse impact on the environment. These sustainability claims thus create an environmental “Halo Effect” around its operations and product, designed to conceal its gas’ harmful climate impact.

66. Eversource is not currently “Protecting natural resources while holding [itself] accountable for the impact our business may have on the environment,” or “operating in a socially and environmentally responsible manner” to “protect our planet and its people” – which statements are consistent with its false and deceptive claims that its product is “clean” “safe” and/or “good for the environment.” Instead, Eversource still actively markets its natural gas, and seeks to convert and expand the number of households using gas, despite the climate harms.

It forecasts achieving over 36,700 new residential gas customers from 2021 to 2026 alone.

Demand, fn 69. These false generalized environmental benefits are thus actionable. *See, e.g.*, 16 C.F.R. § 260.4 (a) (“It is deceptive to misrepresent, directly or by implication, that a product... or service offers a general environmental benefit.”); and 940 C.M.R. 3.05 and 6.03(2)-(4).

67. Eversource also claims to have a goal of “decarbonizing” its pipeline, including by using biogas methane from landfills and agriculture, so-called RNG for “renewable natural gas.” (Eversource 2021 Sustainability Report at 11) However, this only serves to bolster Eversource’s false Halo Effect and deception because such RNG gas (even if available, which is highly questionable) has the same methane leak profile as its current fossil gas. And it is likely derived from intentionally produced methane sources or methane that is diverted from flares, making the methane problematic because it is “climate-additional” rather than actually lowering emissions as Eversource claims. (<https://iopscience.iop.org/article/10.1088/1748-9326/ab9335>) Moreover, the RNG supply chain mean-leakage rate was 4.6% according to a recent study, which means that the most environmentally responsible approach may be to flare (burn) the methane (thus, ironically, turning it into the much less potent CO₂ in the critical near-term) rather than trying to use it as fuel. *Id.* at 4-7 (including Supplemental Data). The repurposing by gas companies of methane from existing sites where it is already in use, such as farms, also renders any carbon neutrality claim specious. *Id.* And Eversource’s reliance on the potential future use of “green” (or other) hydrogen to reduce emissions from its gas is deceptive because hydrogen is an undeveloped and unsuitable technology for residences or anything other than some hard to service end-users. Demand, fns 80, 81. More ominously, the false and unqualified claims for RNG and hydrogen, which are also being promulgated by the gas industry more

generally, are intended to delay and forestall public and private efforts to quickly decarbonize the energy sector through electrification in Massachusetts and beyond.

68. Because Eversource omits the above material facts that would explain the known limitations of its so-called “decarbonization” goal, its materials are deceptive and thus actionable. *See, e.g.*, 16 C.F.R. § 260.3(c) (environmental marketing claim should not overstate environmental attribute/benefit, or state or imply environmental benefits if negligible); § 260.4 (a); *see also* 940 C.M.R. 6.03 (2) - (3), and (4) (“An unfair or deceptive representation may result not only from direct representations and the reasonable inferences they create, but from the seller’s omitting or obscuring a material fact.”)

Eversource’s Carbon-Neutral Claims are Actionable Greenwashing

69. Eversource’s claimed commitment in its marketing, starting in or before 2021 to the present, that “we’re committed to having carbon-neutral operations by 2030” is deceptive because Defendant has no ability or intention to make its “operations” “carbon-neutral” as those terms are reasonably defined, by 2030.

70. By its “operations,” Eversource narrowly means only its own buildings, vehicles and pipelines (called Scope 1 and 2 emissions). This excludes a vast percentage of greenhouse gas emissions attributable to its actual operations, including: the gas production, processing and distribution infrastructure from which it obtains the gas it sells to consumers; and the downstream methane emissions from its customers’ usage, including post-meter leakage. (These latter sources are called Scope 3 emissions.)

71. But Eversource failed to clearly disclose this formidable limitation in its marketing and thus creates the false impression for its consumers that they are contributing to a low-carbon future by purchasing its natural gas.

72. In fact, Eversource's only acknowledgement that not all of the emissions attributable to its gas are included in its "carbon neutral by 2030" commitment is made obtusely and for the first time buried in small print in its Sustainability Report for 2021 (published in late 2022). (<https://www.eversource.com/content/residential/about/sustainability/sustainability-report/past-sustainability-reports>) On page 25 it wrote: "We are also looking to complete a comprehensive evaluation of indirect scope 3 emissions from our value chain, quantify these sources as best we can, and develop a strategy for how we can reduce these indirect emissions." Id. Meanwhile, President and CEO Joe Nolan's cover letter refers only to its "operations." Id. at 6. Scope 3 is not referenced in the cover letter and is nowhere explained even in the fine print on page 25. Thus, the term "operations" was deceptive in the context of Eversource's stated "carbon-neutral by 2030" commitment when made. As such, it is not susceptible to a defense that the statement is forward looking.

73. The following year, Eversource made an implicit admission that its prior disclosures were deficient. In its 2022 Sustainability Report (published in late 2023), President and CEO Joe Nolan's cover letter finally mentions that its Scope 3 emissions are not included in the 2030 commitment. ("While our carbon neutrality goal focuses on emissions from our own operations, the science-based target will incorporate these and other more focused measures to reduce indirect emissions from our value chain, such as emissions associated with our customers' energy usage.") Id. at 1. (<https://www.eversource.com/content/docs/default-source/community/eversource-2022-sustainability-report.pdf>)

74. But even this belated "disclosure" is still misleading because it fails to state, in lay terms, what that actually means or its implications. For example, it does not reveal the potentially enormous climate impact of those emissions, which may match or exceed its Scope 1 and 2

emissions. *See, e.g.*, § 260.3(c) (environmental marketing claim should not overstate environmental attribute/benefit, or state or imply environmental benefits if negligible).

75. Moreover, because Eversource's "we're **committed** to having carbon-neutral operations by 2030" statement in its marketing failed to specify that it referred to only a "portion" of the gas infrastructure it relies on (by excluding leakage from wellsite to its pipelines, and consumers' usage) it violates 16 C.F.R. § 260.3(b) ("Unless it is clear from the context, an environmental marketing claim should specify whether it refers to the product... a service, or just to a portion of the product.... or service.") (Emphasis added.) It also violates § 260.3 (c) ("Marketers should not imply that any specific benefit is significant if it is, in fact, negligible.")

76. Finally, Eversource's use of the term "carbon neutral" is deceptive because it implies (no matter how its "operations" is defined), that it will reduce its harmful emissions to zero. In fact, buried in its Sustainability Reports on its website from late 2022 and 2023 (for years 2021 and 2022, respectively), Eversource surreptitiously reveals that it intends to purchase "carbon offsets" to reach the "carbon neutral by 2030" commitment, as necessary. It buried the following in a text-heavy 2021 Report: "For emissions that cannot be avoided, we are preparing to invest in credible offsets." *Id.* at 25. The limitation of "cannot be avoided" is not defined. It wrote in its dense 2022 Report: "[W]e are driving emissions as close to zero as possible with an intent to limit the amount of emissions that will need to be offset.")

(<https://www.eversource.com/content/docs/default-source/community/eversource-2022-sustainability-report.pdf>) at 23 (emphasis added). Again, "as close to zero *as possible*" is not defined. Nor does Eversource seek to qualify the claim by disclosing the amount or cost of carbon offsets it projects needing to "invest in" or the method by which those will be calculated (i.e., a 20 or 30 year vs 100 year time horizon, the latter of which would dramatically understate

the impact of carbon emissions on the climate before 2030 or 2050 and result in Eversource purchasing dramatically fewer carbon offsets than if a 20 or 30 year horizon was used).

Moreover, carbon offsets are generally inferior to rigorous emissions reductions and great vigilance and transparency will be required to ensure that any carbon offsets are “credible” given the myriad high-profile failures in that market.

77. Given its total lack of progress on staunching the leaks in its own pipeline infrastructure, the necessity of purchasing (significant) carbon offsets for its methane leaks under its own above-stated framework is inevitable. *See, e.g., id.* at 23 (*see chart, for methane*). Importantly, while on the one hand Eversource claims that purchasing credible carbon offsets will ameliorate its methane emissions impact on the climate, it has admitted in the fine print to not having purchased any such carbon offsets to date despite its broad marketing claims that its gas is safe, clean and good for the environment.

78. Eversource’s promotion of the false Halo-Effect for its gas is relentless. For the last many months, Eversource regularly sends to its customers, including Plaintiff Masny-Latos as an insert in her monthly bill, promotional material containing the unqualified 2030 carbon-neutral goal and deceptively claiming “Did you know since 2018 we’ve reduced our greenhouse gas emissions by 25%.” *See Exhibit F.* Two illustrative Eversource Facebook ads from 2018 and 2020 also show that it promoted its gas as “clean” and “safe” back then, with one containing a photo of the ubiquitous mother-and-child trope to reinforce the falsehood. *Id.*

79. Because Eversource’s much-touted “carbon neutral by 2030” commitment failed to disclose the material facts and limitations discussed above, the marketing is actionable greenwashing. *See, e.g.,* § 260.3(c) (environmental marketing claim should not overstate environmental attribute/benefit, or state or imply environmental benefits if negligible); §

260.4(d) (“Even if a marketer explains, and has substantiation for, the product’s specific environmental attributes, this explanation will not adequately qualify a general environmental benefit claim if the advertisement otherwise implies deceptive claims.”); and 940 C.M.R. 6.03 (2) - (3), and (4) (“An unfair or deceptive representation may result not only from direct representations and the reasonable inferences they create, but from the seller's omitting or obscuring a material fact.”).

**Eversource Admits that its Environmental Claims
are Material to its Customers**

80. Eversource admits the environment matters to its customers. To quote the Sustainability Report for 2021 linked from the newsletter distributed to its customers:

“Customers continue to request natural gas due to its reliability, convenience and environmental benefit compared to other heating options.

(<https://www.eversource.com/content/residential/about/sustainability/sustainability-report/past-sustainability-reports>) at 11 (emphasis added).

81. But the proclaimed environmental benefit from its natural gas is false and misleading given the oversized adverse climate-impact from methane leaks, and the superiority of electric heat pumps. Thus, Eversource deceived its “customers” on what it acknowledges is material, the environmental impact of its gas.

**A Measure of Damages for the False Environmental Climate
and Greenwashing Claims**

82. Eversource could have purchased credible verifiable carbon offsets to counter the environmental climate impacts of its natural gas, but failed to do so. That is, Eversource could have purchased a sufficient quantity of such carbon offsets and disclosed them in its advertising to support any claim that its product is “clean” “safe” and “good” for the climate for its

emissions, Scope 1 and 2, as well as Scope 3. Properly disclosed in its marketing, Plaintiffs and the Class would thus have been informed that carbon offsets were available and necessary to counter the substantial adverse climate impacts of its fugitive methane, as well as the enormity of offsets required. Defendant's failure to do so has damaged the Class and the Class is entitled to, among other relief, the value of verifiable carbon offsets necessary to offset the climate impacts of the natural gas sold to Class members. In effect, Eversource had declared, advertised and promoted its own climate targets – that its gas is “clean,” “good” and “safe” for the climate – and it must be held to those claims. Therefore, Eversource is liable to and must compensate the Class for the dollar value of the carbon offsets that should have been but were not purchased by Defendant. Alternatively, if in the unlikely event such compensation directly to the Class is not available relief, then Eversource should be ordered to purchase directly the carbon offsets necessary to offset the climate impacts of the gas it sold to Class members. The Class is also entitled to other damages as set forth in this Complaint and/or as determined at trial.

INJUNCTIVE RELIEF IS PROPER

83. As Eversource admits: “Customers continue to request natural gas due to its reliability, convenience and environmental benefit....” (Eversource 2021 Sustainability Report at 11) Eversource’s ubiquitous emphasis on “safety” evidences the importance of that “feature” to its customers as well. Plaintiffs exposed to past and current advertising and who could be exposed to future marketing are entitled to an injunction against the deceptive acts so that they can rely on current and future statements from their company. Otherwise, purchasers would be left on uncertain footing when viewing future advertisements, not knowing whether their company has changed its product and related operations to conform to the advertisement or whether the advertisement remains false. Thus, despite Eversource having recently changed its

website to remove some – but not all – of the deceptive claims identified herein, Defendant never affirmatively renounced nor corrected its prior deceptive marketing claims and, absent a Court finding and order, could maintain or revive those or similar false and deceptive claims at any time in newsletters, inserts, on its website, on social media or elsewhere to the harm of Plaintiffs and the Class who have a right to know if their Company is telling the truth about the products and services it is selling them on an ongoing basis.

FRAUDULENT CONCEALMENT

84. Plaintiffs Ortiz and Masny-Latos and the other members of the Class were unable to discover earlier that Eversource was making false and deceptive claims about the environmental and health impacts of the natural gas and service that it markets and sells because: (1) Eversource's promotional materials conceal the health risks imposed by natural gas, particularly on young children by providing, *inter alia*, claims and testimonials touting the safety of its gas for families and the routine use of imagery with children; and (2) as a regulated gas company, Eversource's health and environmental claims have greater credibility, even though marketing materials are not subject to prior regulatory oversight or approval.

85. Moreover, because Eversource's false and deceptive advertising claims require expertise to unravel, Plaintiffs Ortiz and Masny-Latos and the Class could not reasonably have discovered, and were prevented from discovering, the truth about Eversource's natural gas and its potential adverse health risks and negative climate impacts.

86. Eversource communicated directly with its customers through marketing information, circulars, newsletters and notices inserted in monthly bills and/or sent by email, and on Eversource's website, which was linked from all disseminated materials, all of which deceptively promoted natural gas as beneficial, as discussed herein, while concealing the adverse

health risks and environmental-climate impacts arising from the use of its product, thereby inducing consumers to continue to purchase and use gas, including for cooking, and/or to replace their appliances with natural gas fueled devices.

87. Plaintiffs Ortiz and Masny-Latos only recently learned that Eversource's gas was not "clean" or "safe" and was exposing them to potentially toxic gases in their home and was harming the environment, and that Eversource's claims were false, misleading, and deceptive.

CLASS ACTION ALLEGATIONS

88. Plaintiffs bring this suit as a class action on behalf of themselves and on behalf of other similarly situated persons pursuant to Mass. Civ. P. Rule 23 and Mass. Gen. Laws c. 93A for the 93A claims, as well as their statutory claims per M.G.L. c. 266, § 91, and any available common law claims.

89. Subject to additional information obtained through further investigation and/or discovery, the proposed Class is defined as follows:

Class: All Massachusetts residential customers of Defendant during the proposed Class period as tolled to whom Defendant disseminated marketing and advertising materials containing false, deceptive and misleading environmental health-safety ("False Health-Safety") and/or other environmental ("False Environmental Claims and Greenwashing Scheme") claims, including but not limited to via email and billing inserts, its newsletters, website, and social media, including but not limited to Facebook, entitling them, inter alia, to equitable relief and damages;

Gas Stove Subclass: All Class members with gas stoves who are thus at risk of being exposed to hazardous contaminants from the leakage in the house and/or combustion of natural gas while cooking, entitling them to equitable relief and the cost of having their air tested and other damages.

Excluded from the Class are: (1) Defendant, its subsidiaries, affiliates, officers, directors, assigns and successors, and any entity in which Defendant has a controlling interest; (2) any Judge to whom this case is assigned and any member of the Judge's immediate family; (3) anyone who is in the business of marketing or distributing residential natural gas or conversions to natural gas

independently or on behalf of Defendant; and (4) anyone asserting claims for personal injury.

Plaintiffs reserve the right to modify the Class as further investigation and/or discovery warrant.

90. This action has been brought and may properly be maintained as a class action pursuant to Chapter 93A, § 9(2) and case law thereunder as to the Chapter 93A claims, and Mass. Civ.P. Rule 23 and case law thereunder as to the other claims.

91. **Class Period:** The Class Period is from four years prior to the filing of this action under Chapter 93A and for additional years for all other claims as provided by law, except as otherwise extended due to a tolling under the Discovery Rule and/or doctrine of fraudulent concealment.

92. **Numerosity:** The members of the Class are so numerous that joinder of all members is impracticable. Plaintiffs reasonably believe that the Class is comprised of hundreds of thousands of residential consumers in Massachusetts.

93. **Commonality:** Common questions of law and fact exist as to all members of the Class. These common questions predominate over any questions affecting only individual Class members. The common legal and factual questions include, but are not limited to, the following:

Whether Defendant's conduct alleged herein constitutes unfair and deceptive trade practices in violation of state law;

Whether Defendant's marketing and promotion of natural gas as alleged herein constitutes unfair, false, deceptive and/or misleading claims in violation of state law;

Whether equitable relief is appropriate to prevent the continued perpetuation of the alleged wrongdoing, or of such misconduct in the future, by Defendant;

Whether said equitable relief in the form of corrective disclosures should be ordered made by Defendant directly to all Class members and the public as to the health risks and adverse environmental impacts associated with its natural gas, and what the frequency and method for making those corrective disclosures should be;

Whether Gas Stove Subclass members have suffered damages from the False Health-Safety Claims and the measure of those damages, including, inter alia, the cost of testing the air

in their homes, the cost of an installed proven-effective automatic external ventilation system for the stove to mitigate the health risk from its natural gas so that their stoves conform with Defendant's claims that its natural gas is "clean" "safe" and "good" for consumers, or the cost of an electric or induction stove fully installed to rectify the risks its marketing concealed, and for the at least \$1 of additional gas they purchased monthly than what they would have purchased had Defendant not misleadingly marketed natural gas as safe and clean for people.

Whether Class members have suffered damages from the False Environmental Claims and Greenwashing Scheme and the measure of those damages, including, inter alia, for the at least \$1 of additional gas they purchased monthly than they would have purchased had Defendant not misleadingly marketed natural gas as environmentally beneficial, the cost of disconnecting the gas pipeline to their homes, and/or the monetary value of verifiable carbon offsets that Defendant would have had to purchase, but failed to purchase, to offset the adverse environmental climate impacts of the natural gas it sold and continues to sell them over the Class period, to conform its product with its "clean" "safe" and "good" for the environment marketing claims;

Whether Class members are entitled to equitable relief and/or suffered damages from the False Environmental Claims and Greenwashing Scheme and are entitled to the alternate relief of having verifiable carbon offsets purchased directly by Defendant, in sufficient quantity, to offset the adverse environmental climate impacts of the natural gas it sold to them over the Class period, to conform its product with its "clean" "safe" and "good" for the environment marketing claims;

Whether Class and Subclass members have suffered damages because the gas that they were sold and purchased, that Defendant claimed is, inter alia, "safe," "clean" and "good" for families and the environment and climate, but which gas lacks those attributes, is less valuable than what they paid for in an amount to be determined at trial; and

Whether Class members are entitled to any other relief, including but not limited to under the common law for Defendant's unjust enrichment, and the form or amount of that relief.

94. In making the false, deceptive and misleading claims, Defendant acted, or refused to act, on grounds that apply generally to the Class so that final declaratory relief or corresponding equitable relief and/or an award of damages is appropriate as to the whole Class.

95. **Typicality:** Plaintiffs Ortiz's and Masny-Latos's claims are typical of those of the other members of the Class because they are all residential customers of Defendant subject to the same or materially similar misrepresentation, deception and/or unfair trade practices of

Defendant, so the harm sustained by the Named Plaintiffs and all of the members of the Class arises from and was caused by the same course of conduct in which Defendant engaged.

96. **Adequacy:** Plaintiffs Ortiz's and Masny-Latos's claims are made in a representative capacity on behalf of the other members of the Class, including the Subclass. Plaintiffs have no interests antagonistic to the interests of the other members of the proposed Class or Subclass and are subject to no unique defenses.

97. Plaintiffs Ortiz and Masny-Latos are similarly situated in interest to all members of the Class and Subclass, are committed to the vigorous prosecution of this action and retained competent counsel experienced in consumer class actions. Accordingly, Plaintiffs are adequate representatives of the proposed Class and Subclass and will fairly and adequately protect the interests of the Class and Subclass.

98. Claims under Chapter 91, and those under common law, should be certified under Mass. Civ. P. Rule 23 (b) because there are questions of law or fact that are common to the members of the Class that predominate over any questions affecting only individual members and a class action is superior to other available methods for the fair and efficient adjudication of the controversy. The injury suffered by each individual class member is relatively small in comparison to the burden and expense of individual prosecution of the complex and extensive litigation necessitated by the Defendant's misconduct. It would be virtually impossible for members of the Class individually to effectively redress the wrongs done to them. Even if the members of the Class could afford such litigation, the court system could not individualize litigation inasmuch as it presents a potential for inconsistent or contradictory judgments. Individualized litigation increases the delay and expense to all parties, and to the court system when presented by complex legal and factual issues such as those in this case. By contrast, the

class action device presents no management difficulties, and provides the benefits of single adjudication, economy of scale and comprehensive supervision by a single court.

99. The Chapter 93A claims should be certified under M.G.L. 93A § 9(2) for all Chapter 93A claims because Defendant engaged in a common course of conduct and caused similar injury to the persons comprising the proposed Class and Subclass and Plaintiffs will adequately and fairly represent such other persons.

COUNT I
For Injunctive Relief and Declaratory Relief

100. Plaintiffs incorporate herein the allegations contained in the proceeding paragraphs as if fully set forth herein.

101. Based on the foregoing, this Court should enter injunctive relief including, without limitation, precluding Defendant from falsely and deceptively promoting the False Health-Safety Claims and False Environmental Claims and Greenwashing Scheme concerning its natural gas to its customers in order to retain them and/or sell more gas and/or gain them as new customers,

102. Plaintiffs request that this Court enjoin Defendant from engaging in unlawful practices and acts as alleged herein. If Defendant is not permanently enjoined from engaging in such violations of law, Plaintiffs, the Class and future consumers will be damaged by Defendant's acts and practices in the same or similar ways as Plaintiffs and the Class and Subclass have been.

103. Plaintiffs request that this Court order Defendant to immediately and routinely make corrective disclosures directly to Plaintiffs and the Class and Subclass, including but not limited to, in its monthly bills, its newsletters, via email, on its website and other social media platforms, including its Facebook pages, so that Defendant accurately describes the risks and

potential dangers of its natural gas, including the adverse health and safety risks and the adverse environmental and climate impacts thereof.

104. Plaintiffs request further that this Court order Defendant to cease and desist from indirectly making false and deceptive statements about natural gas through third parties, such as trade associations or other industry groups, via membership fees, payments, or other engagement with those third parties to the extent they are making statements inconsistent with the ruling of this Court.

COUNT II
Violations of the Massachusetts Consumer Protection Act
(M.G.L. c. 93A, § 1, *et seq.*)

105. Plaintiffs incorporate herein the allegations contained in the preceding paragraphs as if fully set forth herein.

106. Plaintiffs bring this claim on behalf of themselves and the Class and Subclass.

107. More than 30 days prior to filing this complaint, a proper demand for relief was made on Defendant under M.G.L. c. 93A on behalf of Plaintiffs and the Class and Subclass.

108. Defendant did not make a reasonable offer of settlement to Plaintiffs or the Class and Subclass.

109. Defendant's acts and practices as set forth herein constitute unfair or deceptive acts or practices in the conduct of its business in violation of Chapter 93A, §§ 2 and 9.

110. These violations of Chapter 93A include, without limitation, Defendant's falsely and deceptively promoting the False Health-Safety Claims and False Environmental Claims and Greenwashing Scheme concerning its natural gas to its customers in order to retain them and/or sell more gas and/or gain them as new customers.

111. These violations of Chapter 93A include Defendant's marketing violations of the FTC guidance, as incorporated in Chapter 93A, for its False Health-Safety Claims and False Environmental Claims and Greenwashing Scheme as alleged herein.

112. These violations of Chapter 93A include Defendant's marketing violations of the regulations promulgated thereunder by the Massachusetts Attorney General for its False Health-Safety and False Environmental Claims and Greenwashing Scheme as alleged herein.

113. These violations of Chapter 93A include Defendant's false, misleading and deceptive business practices as alleged herein.

114. Defendant's violations of Chapter 93A were willful and knowing.

115. Plaintiffs Ortiz and Masny-Latos and the Class have suffered harm as a result of Defendant's unfair or deceptive acts, and are entitled to a declaratory judgment, equitable relief, dollar damages, attorneys' fees and costs.

116. Plaintiffs request that this Court enjoin Defendant from continuing to engage in or ever engaging in the unlawful and deceptive practices and acts alleged above, pursuant to, *inter alia*, Chapter 93A, § 6, along with appropriate court costs and attorneys' fees pursuant thereto. If Defendant is not permanently enjoined from continuing to engage in or ever engaging in such violations of Chapter 93A, Plaintiffs and future consumers will be damaged by Defendant's acts and practices in the same or similar ways as Plaintiffs and the proposed Class and Subclass.

117. Plaintiffs request that this Court order Defendant to immediately and routinely make corrective disclosures directly to Plaintiffs and the Class and Subclass, including but not limited to in its monthly bills, in its newsletters, via email, on its website and social media, including its Facebook pages, that accurately describe the risks and potential dangers of its

natural gas, including the adverse health and safety risks and the adverse environmental and climate impacts thereof.

118. Plaintiffs request further that this Court order Defendant to cease and desist from indirectly making false and deceptive statements about natural gas through third parties, such as trade associations or other industry groups, via membership fees, payments, or other engagement with those third parties to the extent they are making statements inconsistent with the ruling of this Court.

119. As a result of Defendant's willful or knowing violation of M.G.L. c. 93A §§ 2 and 9, Plaintiffs and the Class are entitled to, inter alia, equitable relief, injunctive relief, disgorgement of unlawful profits, damages in an amount to be determined at trial, multiple damages, and attorney's fees.

120. As a result of Defendant's willful or knowing violation of M.G.L. c. 93A §§ 2 and 9, Plaintiffs and each member of the Gas Stove Subclass are entitled to, inter alia, equitable relief, injunctive relief, disgorgement of unlawful profits, damages in an amount to be determined at trial, multiple damages, and attorney's fees.

COUNT III

False Advertising in Violation of Mass. Gen. Laws c. 266, § 91

121. Plaintiffs incorporate herein the allegations contained in the preceding paragraphs as if fully set forth herein.

122. Plaintiffs bring this claim on behalf of themselves and all members of the Class and Subclass as aggrieved parties entitling them to equitable relief pursuant to Chapter 266, § 91.

123. Defendant used false advertising distributed directly to its customers, on its website, on its Facebook pages, and in its written materials at issue in this lawsuit to promote the use and consumption of its natural gas.

124. Defendant has promoted its natural gas directly to its customers and placed before the public and disseminated advertisements that, by their nature, are deceptive or misleading within the meaning of M.G.L. c. 266, § 91. Defendant's product and service (natural gas, its distribution, gas appliances and/or conversions to gas) are misbranded by its making false and deceptive claims on its website, including about the health-safety and/or environmental attributes and benefits of gas, converting to gas, gas appliances, and the use of natural gas more generally, and in other advertising and marketing materials concerning Defendant's product/service.

125. The marketing and advertising statements described herein are misleading and likely to deceive Class members and the general public.

126. Defendant knew or should have known that the statements and claims it placed before the public and disseminated concerning the (false) health safety and environmental benefit of its product, in marketing materials, including inserts, via email, on its website, on Facebook, and on social media, were deceptive and/or misleading by the omissions and/or inclusion of the false and deceptive statements described herein in violation of M.G.L. c. 266, § 91.

127. Plaintiffs seek a declaration that the marketing materials regarding the health-safety and environmental attributes and benefits of natural gas, converting to gas and as well as the efficiency of gas appliances, are in violation of M.G.L. c. 266, § 91, and seek an Order of this Court enjoining Defendant from making said false advertising now and in the future.

COUNT IV Unjust Enrichment

128. Plaintiffs incorporate herein the allegations contained in the preceding paragraphs as if fully set forth herein.

129. Plaintiffs Ortiz and Masny-Latos bring this claim on behalf of themselves and all the members of the Class and Subclass.

130. Plaintiffs and Class and Subclass members conferred a tangible economic benefit upon Defendant by purchasing its gas. Defendant profited from its sales of gas to Plaintiffs and the Class and Subclass, which profit constitutes unjust enrichment given that Eversource's marketing of its gas was false and deceptive. Plaintiffs expressly disavow any claim for lower or different rates than the regulatory-approved rates for the gas and services they purchased.

131. As a direct and proximate result of Defendant's misconduct as set forth above, Defendant has been unjustly enriched at the expense of Plaintiffs and Class and Subclass members in an amount to be determined at trial.

132. It would be inequitable for Defendants to retain the profits obtained from its natural gas deceptively marketed and sold to Plaintiffs and the Class and Subclass.

133. This relief is appropriate to the extent Plaintiffs and the Class and Subclass may have no adequate remedy at law.

PRAYERS FOR RELIEF

WHEREFORE, Plaintiffs Ortiz and Masny-Latos, on behalf of themselves and all members of the Class and Subclass defined herein, by the undersigned attorney, pray for judgment as follows:

- (i) Certification of a Massachusetts Class and Gas Stove Subclass, and the appointment of Plaintiffs Ortiz and Masny-Latos as representatives of the Class and Subclass and their legal counsel as Class legal counsel to all;
- (ii) Enter judgment for Plaintiffs and the Class and Subclass as appropriate on each and every Count in the Complaint, award declaratory, equitable and injunctive relief as set forth below under M.G.L. c. 93A and otherwise, award damages to the Class and Subclass, trebled under M.G.L. c. 93A, and award the Class's (including Subclass) costs and attorneys' fees, pursuant to M.G.L. c. 93A § 9 and otherwise, and statutory interest, grant the relief sought under the common law count for unjust enrichment as appropriate, and enjoin Defendant's false marketing under M.G.L. c. 266, § 91.

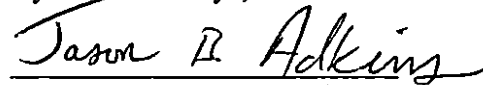
- (iii) A declaration that the Defendant's promotion and advertising of its natural gas contain false, misleading and/or deceptive statements in violation of Massachusetts law as specified in this Complaint or otherwise;
- (iv) An Order enjoining Defendant from promoting and marketing its natural gas, including gas appliances or conversion to gas, in the Commonwealth of Massachusetts using false, misleading and/or deceptive statements that are in violation of Massachusetts law as specified in this Complaint or otherwise;
- (v) An Order that Defendant make reasonable and regular corrective disclosures directly to Plaintiffs and Class and Subclass via email, in monthly billing statements, via advertisements, on its website, and on social media, including Facebook, that accurately describe the potential health-safety risks of gas stoves, and the adverse environmental and climate impacts, resulting from its natural gas;
- (vi) An Order that the applicable statute of limitations be tolled due to Defendant's fraudulent concealment about the health-safety risks, and the adverse environmental and climate impacts of, its gas;
- (vii) Award Plaintiffs their costs and disbursements incurred in maintaining this action, including reasonable attorneys' and experts' fees and other expenses, and pre-and post-judgment interest; and
- (viii) Any other relief as this Court deems just and proper.

JURY DEMAND

Plaintiffs demand a trial by jury on all counts so triable.

Plaintiffs Majida Ortiz and Urszula Masny-Latos,

By their attorneys,



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Dated: May 31, 2024

Attachments: Exhibits A – F